

Court No. - 36

Case :- WRIT - C No. - 35388 of 2011

Petitioner :- Somil Ispat (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Limited And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C.,A.S.G.I.(2011/1159),Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

The Writ Petition pertains to demand for additional security. It is not a recovery matter.

Let it be placed as fresh before the appropriate Bench, if possible, on 7th July, 2011.

Order Date :- 4.7.2011

Ajeet

Court No. - 3

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Petitioner Counsel :- Ranjit Saxena

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Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

Since the petitioner's contention is with regard to additional security only, several orders were passed in various writ petitions admittedly which are pending before this court and as per the statement of learned counsel appearing for the Corporation about five hundred matters are pending with such interim order.

We are of the view that this type of litigations cannot be kept pending indefinitely and are likely to be disposed of. Section 47 of the Electricity Act 2003 is to be read with Clause 4.20 of the U.P. Electricity Supply Code, 2005 in connection with the security and additional security.

The point has been agitated by the petitioner that if pre-paid scheme is provided no additional security is required to be paid to which the respondents' contention is that no pre-paid metre is available in the State.

However, we require counter affidavit to be filed by the respondents in this matter within two weeks. Rejoinder if any, be filed within one week thereafter.

However, subject to furnishing security, other than cash and bank guarantee, to the satisfaction of the respondents, the interim order which is passed in earlier matters i.e Writ Petition No.9849 of 2011 (M/S Ideal Hotel and Industries Ltd. Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others), Writ Petition No.57134 of 2010 (M/S Swarup Rolling Mills Limited Vs. Pvvnl and others) and Writ Petition No.52911 of 2010 (Singhal Galvanizing Industries Vs. Pvvnl and others) will continue in respect of the matter till further order or orders to be passed by the court.

Let the matter be connected with Writ -C No.9849 of 2011 (M/S Ideal Hotel and Industries Ltd. Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others).

Let the matter appear alongwith connected matter.

Order Date :- 7.7.2011

S.B.



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 35388 of 2011

Somil Ispat Pvt. Ltd.

.....Petitioner(s)

Versus

U.P. Power Corporation Limited And Others

.....Respondent(s)

Counsel for Petitioner(s) : Ranjit Saxena

Counsel for Respondent(s) : A.S.G.I.(2011/1159), C.S.C., Pankaj
Kumar Shukla, S.K.Shukla

Court No. - 2

HON'BLE ATUL SREEDHARAN, J.

HON'BLE SIDDHARTH NANDAN, J.

1. It has been informed that learned counsel for the petitioner is no more.
2. Issue notice to the petitioner to engage another counsel.
3. Notice be made returnable within six weeks.
4. List after six weeks.

February 25, 2026

R.S. Tiwari

(Siddharth Nandan,J.) (Atul Sreedharan,J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 35388 of 2011

Somil Ispat Pvt. Ltd.

.....Petitioner(s)

Versus

U.P. Power Corporation Limited And Others

.....Respondent(s)

Counsel for Petitioner(s) : Ranjit Saxena

Counsel for Respondent(s) : A.S.G.I.(2011/1159), C.S.C., Pankaj
Kumar Shukla, S.K.Shukla

Court No. - 5

HON'BLE PRAKASH PADIA, J.

HON'BLE VIVEK SARAN, J.

1. The matter is listed under heading "Oldest pending cases for priority hearing".
2. List revised. Nobody is present on behalf of petitioner though learned Standing Counsel is present on behalf of the State respondents.
3. The writ petition is dismissed in default.
4. Interim order, if any granted earlier, stands vacated.
5. In case, any of the party is aggrieved with this order, he is free to move the recall application within one month from today.

(Vivek Saran,J.) (Prakash Padia,J.)

August 21, 2026
Deepika